

PROPERTY AND RENT CONSULT

The Legal Eviction Process In Ghana

A Plain-Language Guide for Landlords



GHS 89.00

Complete step-by-step guide from warning to enforcement

12 Chapters • Glossary • Practical Examples

Produced in Ghana, for Ghana

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Chapter 1 What the Law Says

Act 220, Rent Control, and why self-help eviction is illegal

Most landlords in Ghana believe they have the right to evict a tenant whenever they wish. This belief has led to serious legal consequences for landlords who take matters into their own hands.

The Rent Act 1963 (Act 220)

The Rent Act 1963, also called Act 220, is the primary law that governs landlord-tenant relationships in Ghana. This law was written to protect both landlords and tenants, but it is often misunderstood.

Under Act 220, a landlord cannot simply remove a tenant, change the locks, remove the roof, cut utilities, or use threats to force a tenant to leave. All of these actions are illegal and can result in criminal prosecution of the landlord.

■ WARNING

Self-help eviction is a criminal offense. Landlords who change locks, cut utilities, remove roofing, or threaten tenants can be prosecuted and imprisoned.

What Is Legal Eviction?

Legal eviction means following a strict process laid out in the Rent Act 1963. This process includes serving formal notices, filing an application with the Rent Control Department, attending a hearing, and obtaining a court order.

Why the Law Requires This Process

The reason the law requires this process is to ensure fairness. A tenant has the right to:

- Know in writing why the landlord wants them to leave
- Have time to respond to the notice
- Be heard by a neutral official (the Rent Magistrate)
- Challenge false accusations
- Present evidence in their own defense

When you follow the legal process, you protect yourself and the tenant. You also create a paper trail that proves you acted lawfully if the tenant later makes false claims.

✓ KEY TAKEAWAY

Legal eviction takes time and follows steps set by law. The investment in following the proper process protects you from criminal charges and ensures the court will enforce your right to recover possession.

About Property and Rent Consult

Property and Rent Consult (PRC) provides practical, offline-first tools and guides for landlords, property managers, and real estate professionals in Ghana.

All products are built on three core principles:

Privacy • Simplicity • Value

This guide provides general information and does not constitute legal advice. For complex cases, consult a qualified Ghanaian legal practitioner.

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